CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, September 11, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, September 11, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew A. Pigatt, Vice Mayor Chris Davis, Commissioner Sherelean Bass, Commissioner Joseph L. Kelley, and Commissioner Alvin Burke. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

The City Commission presented an employee of the month award and a check to Officer Edward Vega and Officer Ludwin Vielman.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-2 and 13-3 (Mayor Pigatt).

NEW ITEM(S):

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TERMINATING THE MAY 26, 2019 CONTRACT WITH INTERCOUNTY ENIGINEERING, INC., AUTHORIZING THE CITY MANAGER TO PREPARE A COMPETITIVE SOLICITATION FOR ALL REMAINING WORK RELATING TO DESIGN-BUILD SERVICES IN CONNECTION WITH CAIRO LANE

UNDER PREVIOUS RFP #15-2904100; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by City Manager

The above resolution was read by City Clerk Flores.

It was moved by Commissioner Kelley, seconded by Commissioner Vice Mayor Davis to amend the agenda to include item 14-1.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

7. APPROVAL OF AGENDA:

It was moved by Commissioner Kelley, seconded by Commissioner Bass to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – June 26, 2019 (Amended)

It was moved by Commissioner Bass, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of June 26, 2019 (Amended).

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Regular Commission Meeting Minutes – July 10, 2019

It was moved by Commissioner Bass, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of July 10, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Regular Commission Meeting Minutes – July 24, 2019

It was moved by Commissioner Bass, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of July 24, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

10. PUBLIC PRESENTATION:

1. Florida Department of Transportation
Ref: Update on NW 27th Avenue PD&E Study

Neelia Cartia, FDOT, District 6, said that an additional analysis was done regarding transit technologies in the north corridor and her co-worker Marie Dowell is going to speak on it.

Marie Dowell said the TPO Board selected elevated rail as an alternate form of transportation and since then they have been working on the level of documentation that would be required to move forward. She proceeded to update the commission on where the project was since the last time they came before the commission.

11. CITIZENS' INPUT:

Eric Redmon, 2766 NW 131st Street, Opa-locka, FL, said he is within his rights to say what he about to say and will not name any names. He does not like bullies and does not like this certain commissioner going around and bullying employees. He is aware that the commission cannot regulate each other, but he has gone to the ethics commission to complain about this situation. He hopes that this will stop since he is being watched. He said employees here are making little to nothing in salaries, but the City is bringing in a manager for all of that money. Employees have been here ten to twenty years and have not received a raise. There was a shooting last night in his complex and the police department was slow to respond; there is an ongoing investigation.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said the potholes in her area are getting larger and larger and the commission needs to do something about it. She said she was appointed as the Community Action Agency Youth Initiative Chair and invited the commission to attend

the meetings since she knows they have not been working on the educational compact. She invited Parks and Recreation Director Charles Brown to attend also.

Angelina Roberts, 1820 Rutland Street, Opa-locka, FL, said she fell in a pothole on Sharazad Blvd and Ahmad Street today and if Public Works were doing their jobs instead of riding around in air conditioning in the City vehicles, they could get some work done.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said last week Tuesday she received a call from a resident who had a large pothole near her home. She called Commissioner Kelley and within days, the pothole was filled. She thanked Commissioner Kelley.

Natalie Perez, 1121 Salih Street, Opa-locka, FL, said there is no sidewalk in front of her home. Her dad just had surgery and wishes to exercise near her home.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE RENEWAL INSURANCE CONTRACTS WITH AVMED, INC. AND METLIFE FOR MEDICAL, DENTAL AND VISION INSURANCE FOR CITY EMPLOYEES; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Mayor Pigatt said he has been confused based on the back up documents and is unsure which of them is being approved tonight.

Human Resources Director Kierra Ward said she is recommending that the commission keep the current insurance providers.

Mayor Pigatt asked if the information can be specific to what Human Resources is recommending.

City Attorney Norris-Weeks said it can be worded specific, but the title speaks to what Human Resources is recommending.

Mayor Pigatt said he pulled the item because he would like to see all of the options detailed in the future.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A RENEWAL INSURANCE AGREEMENT WITH THE FLORIDA LEAGUE OF CITIES, INC.; AUTHORIZING THE EXECUTION OF ALL NECESSARY DOCUMENTS BY THE PROPER CITY OFFICIALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley asked where the City was on identifying vehicles that are covered under the insurance.

Human Resources Director Kierra Ward said they recently reached out to Public Works and the Police Department for an update on a correct count of the Police vehicles. Currently they are short on man power and cannot complete the request at this time. They are working with the departments to get an accurate count on the vehicles.

Mike Morrow, Florida League of Cities, said the league issues the Florida Municipal Insurance Trust (FMIT) and what the commission is talking about is an internal audit of the current fleet. Depending on where the fleet count is and if it is lowered, then there will be a dramatic decrease in the premiums.

Commissioner Kelley asked if there is a template to get the process complete quickly.

Mr. Morrow said the League can assist Human Resources with the process.

Mayor Pigatt said the liability increase is significant and would like for staff to take notice and make necessary changes to cut costs in the future.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE BROWNFIELDS ASSESSMENT GRANT CLOSEOUT AND FINAL QUARTERLY REPORT FROM THE CITY'S BROWNFIELD PROJECT MANAGEMENT AND ENVIRONMENTAL SITE ASSESSMENT ACTIVITIES CONTRACTOR, TERRACON CONSULTANTS, INC.; PROVIDING FOR APPROVAL; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolution.

The motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TERMINATING THE MAY 26, 2015 CONTRACT WITH INTERCOUNTY ENGINEERING, INC.; AUTHORIZING THE CITY MANAGER TO PREPARE A COMPETITIVE SOLICITATION FOR ALL REMAINING WORK RELATING TO DESIGN-BUILD SERVICES IN CONNECTION WITH CAIRO LANE UNDER PREVIOUS RFP #15-2904100; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolution.

Commissioner Kelley asked the manager why he is taking these steps to terminate the contract.

Acting City Manager Daughtrey said the current contract is being terminated at the request of the contractor. A letter was sent from them detailing several reasons for the termination. Additional funds were set aside for the completion of the project, but the contractor basically quit.

Commissioner Kelley asked if the agreement allows them to notice the City in a certain timeframe that they are quitting without any repercussions.

City Attorney Norris-Weeks said there is a section that states that the agreement can be terminated with cause and that was spelled out in the letter.

Commissioner Kelley asked if this was cause for termination.

City Attorney Norris-Weeks said there could be arguments made on both sides, but she has not come to that conclusion.

Acting City Manager Daughtrey said the project has to be finished as soon as possible, but he was told from legal that the project cannot go to the second lowest bidder.

City Attorney Norris-Weeks said that is not true. She said it was told to her that the second lowest bidder is a company that has sued the City in the past. She spoke with one of the Commissioners and they stated that it should go out for bid; it wasn't a decision she made.

Acting City Manager Daughtrey asked the Public Works Director to come forward and clarify.

Public Works Director Airia Austin said they would like to go with the second bidder if it is possible, but the attorney said because the second lowest bidder is suing, it is not recommended that the City awards the bid to them.

Mayor Pigatt said it seems everything has not been thought through with the manager and the attorney and this is a very important decision. He would like for the project to be expedited, but wants to ensure everything is in order. He asked if the item needs to be deferred to a special Commission Meeting.

Mr. Austin said the project has to be closed out with the current bidder in order for the City to move forward.

Commissioner Kelley said he does not want the project to linger because Cairo Lane has looked like that for a very long time.

Commissioner Burke said Intercounty Engineering has received a lot of money from the City and he does not know how much work they have done. What is the status on the work and is there a report available.

Acting City Manager Daughtrey said there have been detailed reports made on the project and it will be provided to the commission in the morning.

Commissioner Burke asked if the project will start from scratch if a new bidder is selected.

Acting City Manager Daughtrey said, "No".

Mayor Pigatt made a motion to amend Section 3 and the resolution to direct and authorize the manager to negotiate with the second bidder and/or prepare an RFP for the remaining work.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the amendment.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Mayor Pigatt stated to the business owners on Cairo Lane that the commission is aware of the importance in completing the project and they will be making sure it gets done.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):
B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING TO CLOSE, VACATE AND ABANDON THE ALLEYS LOCATED BETWEEN THE PARCELS BOUNDED BY SUPERIOR STREET, NW 27TH AVENUE AND OPA-LOCKA BOULEVARD PURSUANT TO ORDINANCE 14-02, FOR THE CONSTRUCTION OF A RETAIL CENTER ON THE PROPERTIES IDENTIFIED BY FOLIOS: 08-2121-007-2650, 08-2121-007-2660, 08-2121-007-2670, 08-2121-007-2680, 08-2121-007-2690, 08-2121-013-2010 AND 08-2121-013-2020 AS INDICATED ON THE SITE PLAN IN THE B-2 ZONING DISTRICT; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Planning & Community Development Director Gregory Gay said the property is being proposed for a retail development and they would like to have a unified title by bringing together all of the portfolios.

Robert Holland, 3250 NE 1st Avenue, Miami, FL, said he represents the developers and wants to buy the alleys from the City being that they have no value to the City and it costs money to maintain. The property will be developed with a fifteen million dollar ($15,000,000.00) project and will be a benefit to the City in terms of value, permanent jobs for residents, and an investment for the gateway of the City.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she supports the project and hopes the commission will consider it. She is not lobbying for the project and has not spoken to anyone.

City Attorney Norris-Weeks said Mr. Gay asked that the item include the additional consideration amount that is listed for the vacation of the alleys.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke for discussion.

Commissioner Burke said he welcomes the project, but he has a problem when people come before the commission and asks for things, but staff does not do their due diligence and ensure

that everything is in order. The property has fifteen hundred dollars ($1,500.00) in citations that have not been paid and it looks like an eyesore. He hopes that all issues will be satisfied prior to the developer's taking ownership of the property.

Commissioner Kelley said he too hopes that the issues will be satisfied.

City Attorney Norris-Weeks encouraged the commission not to miss out on the fifty thousand dollars ($50,000.00) the company is going to pay for the property.

Commissioner Kelley asked what the next step will be after the vacation.

Mr. Holland said there is a section with a reverter clause that the land will go back to the City if nothing is done with it.

Commissioner Kelley said he understands the reverter clause, but he hopes something will be done with the area and it does not stand vacant for a long period of time. He is for the project and welcomes the building up of the area.

Mr. Holland assured that the issues on the property will be resolved.

Mayor Pigatt asked if the item needs to be amended to include the amount being paid to the City and the reverter clause.

City Attorney Norris-Weeks said it can be included in the item.

A motion was made to amend Section 3 to include the amount that was being paid to the City and the reverter clause.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Commissioner Burke informed the commission that this is not a citation, it is a lien on the property and at some point it has to be paid. He asked when this will happen.

Mr. Holland said it is a fifteen million dollar ($15,000,000.00) project and he does not think fifteen hundred dollars (1,500.00) in citations will be difficult to satisfy.

Mayor Pigatt thanked Mr. Holland and his team for bringing the project to the City. The area has been sitting idle for years and he is glad something is being done to benefit the City.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes

Commissioner Bass	Yes
Mayor Pigatt	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BYTHE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR THE APPROPRIATION OF ALL BUDGETS AND EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on August 28, 2019). *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said Risk management used to be handled by the City Attorney's Office and she thinks that is the way it should be. She asked when the Police Department will get a new building because she has observed the Officers working out of their vehicles. She also questioned the salary of the new manager coming from such a small City.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED PROPRIETARY AND SPECIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BYTHE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR THE APPROPRIATION OF ALL BUDGETS AND EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND

REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on August 28, 2019). *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Pace, Opa-locka, FL, said since no one answers her questions, she will be writing a letter to the state to bring attention to her concerns.

There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to pass the ordinance.

Mayor Pigatt stated that this budget is to wrap up all of the line items to ensure the City is abiding by all of the laws associated with the preparation of the budget.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said the City now has a pothole patcher to deal with all of the complaints from residents. The previous method was basically a temporary fix and now with the hot patching, it will have permanent results. He thanked the commission and the citizens of Opa-locka for allowing him to serve. He asked for prayers for the new City Manager so he can get the job done.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Commissioner Kelley thanked the Police Department for working on behalf of the City. He also thanked the manager and staff for the work they have done with the Bahamas relief efforts and bringing non-perishable items to be sent to the island. Meet Me Monday was held on this past Monday as scheduled; the food distribution will be held next Friday; a re-entry fair will be held on the 25th for people who need help making a better life for themselves. There will be many resources available at this event.

20. OFFICIAL BOARD APPOINTMENTS:

Community Relations Recreation & Activities Board Chairwoman Natasha Ervin made a recommendation to the commission to award the Educational Scholarship to Gia Cogdell who is

a student at Florida State University and a resident of Opa-locka. She said that the music festival will not be taking place anymore and asked that the thirty five hundred dollars ($3,500.00) be put towards transportation for the Opa-locka Hurricanes Football Team. The lights on the football field are in bad condition and the board wants to know when they will be replaced. She also informed the commission that three of the board members never attend the meetings and wants to know if they will be replaced.

Commissioner Kelley asked for an update on the lighting issue on the park.

Mr. Austin said they received several quotes and have identified a company. The project should be complete in the next two weeks.

Commissioner Kelley asked for the status on the condition of the two buses.

Mr. Austin said they are currently inoperable.

Vice Mayor Davis asked if there is funding for new buses.

Parks and Recreation Director Mr. Brown said he is working on getting quotes for new buses with a lift to transport the seniors and the football team as well. One of the yellow buses is in working condition and that is what they are utilizing.

Mayor Pigatt asked Mrs. Ervin to bring the issues she mentioned to staff since there is about two hundred thousand dollars ($200,000.00) that can be utilized.

Mrs. Ervin also mentioned that the elevator at Sherbondy Village is still not working.

Mayor Pigatt asked her to submit that information as well so staff can address it. He also encouraged residents to apply to serve on the boards and fill any vacancies that are available.

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Vice Mayor Davis to adjourn the meeting at 9:22 p.m.

MAYOR

ATTEST:

CITY CLERK